

New York City Council

Memorandum in Support of Legislation

This memorandum is authored by the sponsor and explains the need for the legislation referenced below, in accordance with Rule 6.00(d) of the Rules of the Council.

Introduction Number:

Prime Sponsors:

Virginia Maloney

Bill Title:

A Local Law to amend the administrative code of the city of New York, in relation to establishing a private cause of action for certain harms arising from third-party misuse of artificial intelligence models

Submitted by:

Council Member Virginia Maloney

Justification:

This bill would create a private right of action against companies that make artificial intelligence models available for commercial or public use when third parties cause harm by misuse or malicious use of artificial intelligence models. A person could bring a civil lawsuit directly against the AI provider if the harm was foreseeable and the company failed to implement reasonable safeguards against the misuse or malicious use that caused the harm. This bill focuses on third-party misuse and holds AI providers accountable in establishing safety guardrails, content filters, and other safety restrictions. The plaintiff could seek damages, injunctive relief, and other appropriate remedies. This legislation would be a crucial first step to address misuse of AI and resulting personal harm as lawmakers work to establish AI guidelines and regulations.